

## Karan Singh v. State of U.P. and 3 Others

Allahabad High Court · Division Bench · 25 January 2024 · 2024:AHC:12061-DB · Writ - C No. 30596 of 2023 · **Writ disposed; post-disconnection billing dispute referred to the Executive Engineer under Clause 6.5 on a 50% deposit and objections within one month; balance recovery abides that decision; default discharges the order**

### HEADNOTE

Where a son challenges a recovery citation for electricity dues on a connection standing in his deceased father's name, contending that recovery against him is wrongful and that supply was disconnected in 2019 so later charges are illegal, and he does not dispute that after his father's death he consumed electricity from that connection, the writ court treats him as liable for those charges. The dispute for the period after the alleged disconnection requires adjudication. As suggested by his counsel, that dispute is referred to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, provided he deposits 50% of the amount sought to be recovered. Within one month he must deposit 50% of the total outstanding before respondent no. 3 and file objections with a true attested copy of the order; respondent no. 3 is to decide them in accordance with law; and recovery of the balance abides that decision. If any condition is not complied with, the order stands discharged and the respondents may proceed in accordance with law. The Court did not decide whether supply was in fact disconnected in 2019, the quantum of the citation, or the legality of a citation in a dead person's name.

### FACTUAL SUMMARY

Karan Singh filed Writ-C No. 30596 of 2023 against the State of U.P. and three others, challenging a recovery citation dated 12 October 2022 issued by respondent no. 4 for electricity dues on a connection that stood in his father's name. He said the citation against him was wrongful, and that supply had been disconnected in 2019, so charges for any later period were illegal.

When the petition was first taken up on 4 October 2023, the only ground urged was that recovery was being made from a dead person. The petitioner did not deny liability for his father's liabilities, and the Electricity Department was asked to take instructions. Coercive action was stayed from 2 November 2023 and that protection was continued while he sought time to amend. On 18 January 2024 Civil Misc. Amendment Application No. 2 of 2023 was allowed and the interim order was not extended. At the hearing on 25 January 2024 he did not dispute that, after his father's death, he had consumed electricity from the same connection.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

Post-disconnection charges on a deceased father's connection — reference to the Executive Engineer under Clause 6.5 on a 50% deposit

#### QUESTION

Where the son of a deceased consumer does not dispute that he consumed electricity from the same connection after his father's death, but disputes charges for the period after an alleged disconnection, may the writ court refer that dispute to the Executive Engineer under Clause 6.5 on a condition that he deposit half the sum under recovery?

#### HOLDING

Yes. The petitioner challenged the recovery citation dated 12.10.2022 issued by respondent no. 4. He did not dispute that after his father's death he consumed electricity from the same connection and was therefore liable to pay electricity charges. The dispute for the period after supply was allegedly disconnected required adjudication. As suggested by his counsel, the Court referred that dispute to the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005, provided he deposits 50% of the amount sought to be recovered by the citation. Within one month he is to deposit 50% of the total outstanding amount before respondent no. 3 and file objections with a true attested copy of the order. Respondent no. 3 is to decide the objections in accordance with law. Recovery of the balance abides that decision. If any of those conditions is

not complied with, the order stands discharged automatically and the respondents may proceed in accordance with law. ¶ 1-6

#### QUALIFIER

Liability for consumption after the father's death was recorded as not disputed; the post-disconnection period was not quantified. The 50% figure was a condition suggested by the petitioner's counsel. Paragraph 4 speaks of 50% of the amount in the recovery citation; paragraph 5(a) speaks of 50% of the total outstanding. The Court cited only Clause 6.5 and did not hold that the clause itself fixes a deposit of one half.

**FLAG** The source PDF joins orders of 4.10.2023 (Siddhartha Varma and Manoj Bajaj, JJ.: recovery from a dead person was the sole ground; liability for the father's liabilities was not denied; instructions were called; listed afresh on 16.10.2023), 2.11.2023 (same Bench: instructions as per the 4.10.2023 order; no coercive action till the next date; listed on 23.11.2023), 23.11.2023 and 12.12.2023 (Siddhartha Varma and Shekhar B. Saraf, JJ.: time to amend; interim continued; listed on 12.12.2023 and then 8.1.2024), 9.1.2024 (Manoj Kumar Gupta, A.C.J. and Kshitij Shailendra, J.: none for the petitioner; Sri Manu Ghildyal for respondents no. 2 and 3; listed on 18.1.2024), 18.1.2024 (same Bench: Civil Misc. Amendment Application No. 2/2023 allowed; amendment to be incorporated within three days; listed on 22.1.2024; interim order not extended), and the disposal of 25.1.2024. Paras 1-6 are of the 25.1.2024 order. Neutral Citation No. 2024:AHC:12061-DB is printed on that order. Coram is the 25.1.2024 Bench. The dispute is referred to the Executive Engineer; the operative directions require deposit before, and a decision by, respondent no. 3. The order does not name the discom, the connection, the citation amount, or respondent no. 3's designation. No precedent is cited.

#### PRINCIPLE TAGS

**clause-6.5-alternate-remedy-to-writ** The writ challenging the recovery citation dated 12.10.2022 was disposed of without deciding the charges said to have accrued after disconnection in 2019. That dispute was referred to the Executive Engineer under Clause 6.5. ¶ 3-5

**billing-dispute-question-of-fact-executive-engineer-clause-6.5** Whether electricity charges were payable for the period after supply was allegedly disconnected was treated as a question requiring adjudication, and was sent to the Executive Engineer under Clause 6.5 rather than decided in the writ. ¶ 2-4

**clause-6.5-representation-executive-engineer** Within one month the petitioner must deposit half the outstanding before respondent no. 3 and file objections with a true attested copy of the order. That respondent is to decide the objections in accordance with law, and recovery of the balance abides the decision. Default in any condition discharges the order. ¶ 4-6

#### NOT DECIDED — NEGATIVE AUTHORITY

##### NOT DECIDED — WHETHER SUPPLY WAS DISCONNECTED IN 2019, AND WHETHER CONSUMPTION CHARGES FOR ANY LATER PERIOD, OR THE QUANTUM OF THE CITATION DATED 12.10.2022, ARE PAYABLE

Left to respondent no. 3 on the petitioner's objections if 50% of the total outstanding is deposited within one month. The citation was not quashed. ¶ 2-5

##### NOT DECIDED — WHETHER A RECOVERY CITATION CAN ISSUE AGAINST, OR IN THE NAME OF, A DECEASED CONSUMER

On 4.10.2023 that was the sole ground, and liability for the father's liabilities was not denied. The 25.1.2024 order records the challenge that recovery was wrongly issued against the son, and treats his admitted post-death consumption as making him liable. It does not decide the legality of a citation in a dead person's name. ¶ 4.10.2023; 2-3